

		At this time, Plaintiff is not ordered to produce his tax returns. However, the Court reserves the right to reconsider the issue if additional facts are discovered which make the tax returns necessary to substantiate Plaintiff's claim of tax-related damages. Plaintiff's request for monetary sanctions is DENIED. Plaintiff shall give notice.
6	Sandoval vs. Lollicup USA Inc. 2025-01475248	1. Motion for Relief from Waiver of Objections 2. Motion to Compel Deposition (Oral or Written) Motion to Compel Further Answers and Production at Deposition Defendant Lollicup USA Inc.'s motion to compel further answers and production at deposition is GRANTED IN PART and DENIED IN PART, as follows. (See Code Civ. Proc., § 2025.480.) On the resumption of the deposition, plaintiff Michael Sandoval is ORDERED to answer without objection the following two questions: (1) Whether plaintiff has incurred any legal expenses in filing this lawsuit. (See Def. Sep. Stmt. at p. 2; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 25:8-23, 47:6-13].) (2) Whether plaintiff has received any money from the lawsuits he has filed as part of his advocacy work on behalf of the civil rights of visually-impaired persons. (See Def. Sep. Stmt. at p. 3; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 29:24-30:5]; see also Compl. ¶ 15.) The motion is otherwise DENIED. With respect to the remaining question at issue (whether plaintiff has any documents showing he could not access the menu besides the screenshot he produced), plaintiff has already

		answered it. Plaintiff effectively answered “yes” by adopting his attorney’s response. (See Def. Sep. Stmt. p. 1; Adams Decl. ¶ 7, Ex. C [Pl. Depo. 42:16-43:3].) As for the further production of documents, defendant has failed to identify which specific demand(s) in the deposition notice are at issue here and has further failed to provide a separate statement with respect to any such demand(s). (Cal. Rules of Court, rule 3.1345(a)(5), (c) [separate statement requirements]; Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 892-893 [a trial court is “well within its discretion” to deny a motion to compel discovery for failure to comply with the separate statement requirement]; see also Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 137-138 [notice of motion that fails, inter alia, to identify the specific discovery requests at issue is insufficient to give notice]; Def. Sep. Stmt., in passim [only addressing questions].) Motion for Relief from Waiver of Objections Plaintiff Michael Sandoval’s motion for relief from waiver of objections to defendant Lollicup USA Inc.’s second set of requests for production is GRANTED. (Code Civ. Proc., § 2031.300, subd. (a); see New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403, 1418-1421 [“mistake, inadvertence, or excusable neglect”; doubts resolved in favor of party seeking relief].) Plaintiff has served a verified response to defendant’s second set of requests for production that is in substantial compliance with Code of Civil Procedure sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. (See Code Civ. Proc., § 2031.300, subd. (a)(1); St. Mary v. Superior Court (2014) 223 Cal.App.4th 762, 779-780, 782 [responses must be evaluated as a collective whole; actual compliance not required where the response is facially a good-faith effort to respond to the requests in a manner that is substantially code-compliant]; see also Katayama v. Continental
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		Investment Group (2024) 105 Cal.App.5th 898, 909-910 [flexibility in court discretion when adjudicating “substantial compliance”]; see also Jankowski Decl. ¶ 8, Ex. D.) Plaintiff has also shown that his failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect. (See Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258 [mistake, inadvertence, or neglect excusable when a reasonably prudent person might have made the same error under the same or similar circumstances]; Comunidad en Accion v. Los Angeles City Council (2013) 219 Cal.App.4th 1116, 1135 [generally, calendaring errors are considered the “result of mistake, inadvertence, or excusable neglect” if such an incident was an “isolated mistake” rather than “a series of errors resulting from disorganization”]; see also Jankowski Decl. ¶¶ 2-7.) Defendant shall give notice of all of the above.
8	Bednar vs. Los Alamitos Racing Association 2021-01224855	Motion for Summary Judgment and/or Adjudication Defendants Los Alamitos Racing Association (“LARA”) and Edward C. Allred’s Motion for Summary Judgment is DENIED. Defendants LARA and Edward C. Allred’s Motion for Summary Adjudication is DENIED as to Issues 1, 2, 4, and 5 and GRANTED as to Issues 3 and 6. Legal Standard for Motion for Summary Judgment A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact”